

Multiple Choice (10 marks)

1. The _____ School of jurisprudence believes that the law is an aggregate of social traditions and customs that have developed over the centuries.
 - (a) Historical
 - (b) Analytical
 - (c) Command
 - (d) Sociological
2. Point out the most accurate response : According to Austin, law has the following attributes :
 - (a) Command, sovereign and enforceability
 - (b) Command, sovereign and legal remedy
 - (c) Command, sovereign and sanction
 - (d) Command, sovereign and obedience by subject
3. Which statement is closest to characterizing the principal difference between the positions adopted by Hobbes and Locke?
 - (a) They adopt different attitudes towards the role of the courts in maintaining order.
 - (b) They disagree about the role of law in society.
 - (c) They have opposing views about the nature of contractual obligations.
 - (d) They differ in respect of their account of life before the social contract.
4. In Justice for Hedgehogs Dworkin endorses 'Hume's principle'. What does he understand by this idea?
 - (a) That there is no distinction between law and morality.
 - (b) That there is a distinction between right and wrong.
 - (c) That facts about the world or human nature cannot normally ordain what ought to be
 - (d) That human rights are fundamentally unsound.
5. Which word best summarizes Weber's explanation of the development of formally rational law?
 - (a) Authority.
 - (b) Charisma.
 - (c) Co-operation.
 - (d) Capitalism.

True / False (10 marks)

Answer True or False

6. True or False: Unlawful homicide committed by a minister abroad is considered a private act (*jure gestionis*) under international law.
7. True or False: A contract for the sale of illegal substances can be considered a valid quasi contract that is enforceable in court.
8. True or False: Collective security is primarily the right of one's allies to defend the victim State without UN intervention.
9. True or False: *Golder v UK* (1978) is the primary case illustrating the 'living instrument principle' as recognized by the European Court of Human Rights.
10. True or False: Standard-setting in human rights diplomacy involves proposing binding legal standards that must be followed by states.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss Dworkin's criticism of Posner's economic analysis of law, particularly his assertion that the theory fails to recognize wealth as a value. What are the implications of this perspective?
12. Discuss the various methods through which a state may express its consent to be bound by a treaty, analyzing the implications of each method in constitutional law.

End of Paper